



FEDERAL BUREAU OF INVESTIGATION



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH
FAR 8.405-6(c)
Requisition Number:

Date: 04/30/2026

Estimated Contract Dollar Value: [REDACTED]

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation, CJIS Division's Business Development Unit, has prepared this justification for other than full and open competition for the Main Building office areas on behalf of the Facilities Management Unit, CJIS Division.

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

This request is for a new contract to purchase carpeting for the CJIS Division's Main Building office areas. With the remodel of module A3 most of our stock will be used and will leave us with no carpet in attic stock to complete planned future projects. This contract will be a firm fixed price contract.

3. A description of the supplies or services required to meet the agency's needs.

The requirement is to replace carpeting in the CJIS Division's Main Building office areas. The estimated cost for the replacement carpeting in the CJIS Division's Main Building office areas is [REDACTED] for 1600 square yards of carpeting (which includes carpeting, glue and a fee for a custom color and pattern match). Carpeting must be 1600 square yards of 710U0 Yuma Carpet Tile 24" x 24" 22 oz. 87750 Word Play to match existing color throughout the CJIS Division's Main Building.

This will allow the CJIS Division to accomplish its mission of "To equip our law enforcement, national security, and intelligence community partners with the criminal justice information they need to protect the United States while preserving civil liberties," as well as accomplishing the mission of the FBI.

4. The statutory authority permitting other than full and open competition.

- FAR 8.405-6 (a)(1)(i) (B) – Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized

A lower quality carpet is currently installed in some areas of the CJIS Division Main Complex. This carpeting has been proven a safety hazard because the corners of this carpeting are coming unglued and causing the carpeting to flip up at the corners causing tripping mishaps throughout the building. Carpeting must be at the minimum required specifications because the carpeting is pulled up on numerous occasions to access the utilities underneath the floor level. The current carpeting installed at the CJIS Main Building has been a cost burden because when the carpeting is pulled up to perform work under the floor, the carpeting stretches and must be replaced with new carpeting. Any slight variation in carpet thickness represents a tripping hazard. This becomes very costly to the Government as well as becoming a safety issue due to the tripping hazard.

It is mandatory that the carpet be durable enough to allow it to be removed to work underneath the floor and then be able to reinstall the same carpet where it was originally removed. The flooring must also stay true to size and shape when taken up to allow for under the floor work. After work is completed under the floor it is mandatory that the same carpet be reinstalled in the same area. The following is a list of specifications for the Yuma-custom tile:

Yuma-Custom tile

Product type: carpet tile

Style Number: 59387

Construction: textured loop

Fiber: eco solution q nylon

Dye Method: 100% solution dyed

Primary Backing: synthetic

Secondary Backing: ecoworx tile

Protective Treatments: ssp shaw soil protection

Warranty: lifetime commercial limited

Product Size: 24.0 x 24.0 inches

Gauge: 1/10 inch

Stitches: 12.5 per inch

Finished Pile Thickness: 0.091 inches

Average Density: 8703 per cu. yd.

Total Thickness: 0.243 inches

Tufted Weight: 22.0 oz/yd²

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

Continental Flooring Company is uniquely qualified to provide this carpet to Federal Bureau of Investigation, CJIS Division, based upon the following:

- They were the company who originally supplied the carpeting for the BTC when it was constructed. Since we are now using this carpet in the Main Building, the carpet must be a perfect match. The carpet is a custom color and requires a custom color and pattern match in order to ensure it matches the carpet we already have down. Since this company possesses this formula, this is the only company qualified to produce this carpeting.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

Since we are now using the same carpet that is used in the BTC for the Main Building, the carpet must be a perfect match. The carpet is a custom color and requires a custom color and pattern match in order to ensure it matches the carpet we already have down. Since this company possesses this formula, this is the only company qualified to produce this carpeting.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The requirement is to replace carpeting in the CJIS Division's Main Building hallways and office areas. The estimated cost for the replacement carpeting in the CJIS Division's Main Building hallways and office areas is [REDACTED] for 1600 square yards of carpeting (which includes carpeting, glue and a fee for a custom color and pattern match). Carpeting must be 1600 square yards of 710U0 Yuma Carpet Tile 24" x 24" 22 oz. 87750 Word Play to match existing color throughout the CJIS Division's Main Building.

8. A description of the market research conducted and the results.

Market research on past historical data captured from previous carpeting purchases indicated a cost of [REDACTED] per yard in the FY 2016. The same carpet was purchased in FY 2019 at a cost of [REDACTED] per yard. The cost for FY 2020 was [REDACTED] per yard. The cost estimate provided by Continental Flooring Company indicated [REDACTED] per yard. The COR has deemed the cost of the Continental Flooring Company carpeting as fair and reasonable.

9. Any other facts supporting the use of other than full and open competition.

FAR 8.405-6(b)(1) Brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's needs.

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Specific requirements exist and are included in order to ensure a quality product that will meet or exceed the attached specifications.

10. A listing of any sources that expressed a written interest in the acquisition.

Continental Flooring Company
9319 N. 94th Way, Suite 1000
Scottsdale, AZ 85258
GSA Advantage Contract Number: GS-03F-001BA
POC: Marsha Kluge
Telephone: 480-281-1241

11. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

The FBI will continue to conduct market research/surveys to ensure the agency has all relevant information necessary to make informed decisions regarding future acquisitions. Full and open competition will be utilized to the fullest extent possible for any future requirements.